CNR No: PHHC010108052024
2026:PHHC:113583

IN THE HIGH COURT OF PUNJAB AND HARYANA AT CHANDIGARH

226 **CWP-1744-2024 (O&M)**
Date of Decision:- 17.08.2026

Rajwanti and another … Petitioners

Versus

State of Haryana and others ... Respondents

CORAM: HON'BLE MS. JUSTICE NIDHI GUPTA

Present:- Mr. Tejeshwar Singh, Advocate and
Mr. Aryan Bajaj, Advocate
for the petitioners.

Ms. Komal Sharma, DAG, Haryana.

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NIDHI GUPTA, J.

Present Civil Writ Petition under Articles 226 of the Constitution of India has been filed by the petitioners for issuance of a writ in the nature of **Certiorari** quashing Order dated 09.01.2020 **(Annexure P-15)** and Order dated 31.05.2023 **(Annexure P-16)** whereby while granting retrospective promotions to Late Sh. Jagbir Singh as Block Agriculture Officer (Circle Agriculture Officer)/Technical Assistant (w.e.f. 01.01.1996), as Sub-Divisional Agriculture Officer (w.e.f. 11.06.1996) and Deputy Director of Agriculture (w.e.f. 11.06.2001), only notional promotion has been granted and actual consequential benefits of promotion such as arrears of salary, allowances, pay benefits, pensionary benefits etc. have been illegally denied; and Issuance of a writ in the nature of **Mandamus** directing the Respondents to grant promotion to Late Sh. Jagbir Singh along with all actual consequential benefits of promotion such as arrears of salary, allowances, pay benefits, pensionary benefits etc. along with interest on the

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2026.08.21 10:53
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aforesaid arrears at the rate of 12% per annum from the respective dates of promotion till the date of actual payment in favour of the petitioners.

2. It is *inter alia* submitted by ld. counsel for the petitioners that petitioners are the legal heirs of the deceased Shri Jagbir Singh, who had expired on 15.8.2018. It is submitted that Jagbir Singh had been appointed as Agriculture Development Officer with the respondent department on adhoc basis on 02.07.1983 and thereafter was regularized w.e.f. 01.11.1986 as per Regularization Policy of the Government of Haryana. Jagbir Singh was a physically handicapped person and vide Disability Certificate dated 10.08.1983, his disability was assessed as 60% by the Chief Medical Officer, Karnal. Later on, the said disability was assessed as 70% by the office of Civil Surgeon, Rohtak vide Disability Certificate dated 25.07.2007. Thereafter, vide Persons with Disabilities (Equal Opportunities, Protection of Rights and Full Participation) Act, 1995, provision was made for 3% reservation in recruitment and promotion for persons with disabilities, but State of Haryana did not issue any Instruction with regard to granting reservation in promotion. Aggrieved against the same, Viklang Sabha, Haryana filed CWP No.12741 of 2009 titled ***Viklang Sang, Haryana Vs. State of Haryana and others*** for benefit of reservation in promotion to the disabled employees; and this Court vide detailed judgment dated 18.03.2010 allowed the said writ petition and directed the Government of Haryana to make provision of reservation in promotion the extent of 3% posts in cadre. Thereafter, Government of Haryana, issued Instruction dated 17/19 April 2017, vide which provision for 3% reservation in promotion was made for Physically Handicapped Employees w.e.f. the date of coming into force of the Persons with Disabilities Act, 1995 i.e. 01.01.1996. After

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2026.08.21 10:53
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issuance of the Instructions by the Government of Haryana providing 3% reservation in promotion in Group A, B, C and D posts, Jagbir Singh, who, was 70% physically handicapped immediately vide representations dated 08.05.2017, 02.08.2017 and 19.09.2017 (Annexures P-7, P-8 and P-9 respectively), requested the respondents to consider his case for promotion to the higher posts but no action was taken. Accordingly, Jagbir Singh had then filed CWP No. 16221 of 2018; which was disposed of vide order dated 06.07.2018 (Annexure P-11), directing respondent No. 2 to look into the representations dated 08.05.2017, 02.08.2017, and 19.09.2017 filed by Jagbir Singh.

3. Thereafter, Jagbir Singh had expired on 15.08.2018, as evident from his death certificate (Annexure P-12). As the respondents had failed to decide the representations filed by Jagbir Singh in terms of order dated 06.07.2018 (P-11), petitioner No. 1 herein had filed COCP No. 1908 of 2019; which was disposed of vide order dated 11.09.2019 (Annexure P-14), recording the fact that in compliance of the writ court order dated 06.07.2018, an order dated 04.09.2019 had been passed by the Director General, Agriculture and Farmers Welfare Department, Haryana, accepting the claim of the petitioner and promotion order will be issued later on. Accordingly, the said COCP came to be disposed of.

4. Ld. counsel submits that thereafter, order dated 09.01.2020 (Annexure P-15) was passed, whereby deceased Jagbir Singh was only given notional promotion to the post of Block Agricultural Officer w.e.f. 01.01.1996.

5. Accordingly, petitioner had served legal notice dated 21.01.2021 (Annexure P-17) to the respondents. In pursuance thereto, another impugned order dated 31.05.2023 (Annexure P-16) was passed, whereby notional promotion

NEELAM KUMARI
2026.08.21 10:53
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of the deceased was made w.e.f. 11.06.1996 to the post of Sub-Divisional Agricultural Officer; and then to the post of Deputy Director, Agriculture w.e.f. 11.06.2001.

6. Ld. counsel contends that the said promotions could not have been notional in nature and Jagbir Singh was entitled to all consequential benefits accruing from the said promotions in view of the fact that promotion had been delayed to the said posts on account of delay and fault of the respondents.

7. Ld. counsel submits that thereafter petitioner had filed CM No. 13990-C-II of 2023 for revival of COCP No. 1908 of 2019 in CWP No. 16221 of 2018 (Annexure P-18). However, the said CM came to be disposed of vide order dated 05.12.2023 (Annexure P-19) with liberty to the petitioner to take recourse to alternate remedy. It is submitted that it is in this background that the petitioners have filed the present writ petition.

8. Ld. counsel contends that deceased Jagbir Singh was given promotion notionally without actual benefits; however, Jagbir Singh is entitled to actual benefits upon promotion, and not just notional promotion, on the ground that when PWD Act, 1995 was passed, a provision was made for 3% reservation in recruitment of persons with disabilities. Yet the respondents failed to issue any instruction with regard to granting reservation in promotion to the disabled employees. Thereafter, CWP No. 12741 of 2009, titled as ***"Viklang Sang, Haryana v. State of Haryana & Ors."*** was filed wherein this Court vide detailed judgment dated 18.03.2010 (Annexure P-3), had directed the respondent State to make provision of reservation in promotion to the extent of 3% posts in a cadre. Thereafter, Government of Haryana issued Notifications/Instructions dated

NEELAM KUMARI
2026.08.21 11:05:53
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17/19.4.2017, 18.10.2017 and 23.01.2018 whereby it was clarified that the reservation in promotion has to be granted to the persons with disabilities w.e.f. the coming into force of the PWD Act, 1995 i.e., w.e.f. 01.01.1996. It is submitted that although the PWD Act, 1995 specifically made provision for 3% reservation in recruitment for Persons with disabilities, but the State of Haryana failed to implement the same. It was only after CWP No. 12741 of 2009 was filed and allowed that the State of Haryana issued Notifications/Instructions dated 17th/19th April, 2017, 18.10.2017 and 23.01.2018 providing for retrospective promotion w.e.f. PWD Act, 1995 coming into force i.e., w.e.f. 01.01.1996.

9. It is submitted that in terms of the above Instructions dated 17/19.4.2017, an order dated 09.01.2020 (Annexure P-15), was passed by the Ld. Additional Director (Admn.), Agriculture & Farmers Welfare Department, Panchkula, Haryana wherein the petitioner was given notional promotion to the post of Block Agriculture Officer from 01.01.1996. Further, on 31.05.2023, an order was passed by the Ld. Additional Chief Secretary to Government of Haryana, Agriculture & Farmers Welfare Department, Haryana whereby the petitioner was given notional promotion to the post of Sub Divisional Agricultural Officer w.e.f. 11.06.1996 (vide Government Order dated 27.12.2022) and to the post of Deputy Director of Agriculture w.e.f. 11.06.2001. However, shockingly, vide these impugned orders, it was provided that only notional promotion would be granted and the actual benefits of promotion shall only be payable from the actual date of promotion in case the employee had actually worked on the promoted post. Ld. Counsel contends that the non-grant of promotion to the Late Sh. Jagbir Singh was only due to administrative lapses, delays and shortcomings on the part of the

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2026.08.21 10:53
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Government of Haryana as it failed to implement the provisions of the PWD Act which unequivocally mandated that 3% reservation is to be given to disabled persons in promotion. The promotion orders were issued after a delay of 24/27 years from the date of coming into force of the PWD Act in 2020 and 2023 respectively, and in these orders, actual benefits of promotion have not been granted. Even after directions were issued by this Court, the department failed to implement the same for more than 07 years until it issued the Instructions dated 17/19.4.2017, 18.10.2017 and 23.01.2018. The delay in promotion of Late Sh. Jagbir Singh is only due to delays, shortcomings and administrative lapses on the part of the respondent department, and there is no fault on the part of the employee. As such, the employee cannot be made to suffer for the administrative lapses on part of the respondents.

10. In support, ld. counsel relies upon the judgment of Hon'ble Supreme Court in ***Union of India & Anr. v. National Federation of the Blind & Ors., 2013 (10) SCC 772.*** The relevant para reads as follows:-

> *"51. Thus, after thoughtful consideration, we are of the view that the computation of reservation for persons with disabilities has to be computed in case of Group A, B, C and D posts in an identical manner viz., "computing 3% reservation on total number of vacancies in the cadre strength" which is the intention of the legislature. Accordingly, certain clauses in the OM dated 29.12.2005, which are contrary to the above reasoning are struck down and we direct the appropriate Government to issue new Office Memorandum(s) in consistent with the decision rendered by this Court.*

NEELAM KUMARI
2026.08.21 10:53
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11. Ld. counsel further relies upon the judgment of Hon'ble Supreme Court in ***The Commissioner, Karnataka Housing Board v. C. Muddaiah, 2007 (7) SCC 689.*** The relevant para reads as follows:-

> *"32. The matter can be looked at from another angle also. It is true that while granting a relief in favour of a party, the Court must consider the relevant provisions of law and issue appropriate directions keeping in view such provisions. There may, however, be cases where on the facts and in the circumstances, the Court may issue necessary directions in the larger interest of justice keeping in view the principles of justice, equity and good conscience. Take a case, where ex facie injustice has been meted out to an employee. In spite of the fact that he is entitled to certain benefits, they had not been given to him. His representations have been illegally and unjustifiably turned down. He finally approaches a Court of Law. The Court is convinced that gross injustice has been done to him and he was wrongfully, unfairly and with oblique motive deprived of those benefits. The Court, in the circumstances, directs the Authority to extend all benefits which he would have obtained had he not been illegally deprived of them. Is it open to the Authorities in such case to urge that as he has not worked (but held to be illegally deprived), he would not be granted the benefits? Upholding of such plea would amount to allowing a party to take undue advantage of his own wrong. It would perpetrate injustice rather than doing justice to the person wronged. We are conscious and mindful that even in absence of statutory provision, normal rule is 'no work no pay'. In appropriate cases, however, a Court of Law may, nay must, take into account all the facts in their entirety and pass an appropriate order in consonance with law. The Court, in a given case, may hold that the person was willing to work but was illegally and unlawfully not allowed to do so. The Court may in the circumstances, direct the Authority to grant him all benefits considering 'as if he had worked'.*

NEELAM KUMARI
2026.08.21 10:53
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It, therefore, cannot be contended as an absolute proposition of law that no direction of payment of consequential benefits can be granted by a Court of Law and if such directions are issued by a Court, the Authority can ignore them even if they had been finally confirmed by the Apex Court of the country (as has been done in the present case). The bald contention of the appellant-Board, therefore, has no substance and must be rejected."

12. Ld. counsel further relies upon the judgment of this Hon'ble Court in ***Harvinder Kaur & Ors. v. State of Haryana & Anr., CWP No. 26551 of 2025, decided on 21.01.2026.*** The relevant paras read as follows:-

"15.The record clearly establishes that the petitioners were eligible and entitled for promotion on the relevant date, but were excluded due to erroneous fixation of seniority by the Department. It is not in dispute that the seniority dispute raised by the petitioners was ultimately resolved in their favour and the respondents themselves corrected the seniority position by placing the petitioners above their juniors. The promotion order dated 26.05.2023 granting promotion to the petitioners with notional effect from 20.01.2017 is a tacit acknowledgment by the Department that the petitioners ought to have been promoted on the date their juniors were promoted."

13. It is accordingly prayed that the present writ petition be allowed and the impugned orders dated 9.1.2020 and 31.5.2023, granting promotion to the late Jagbir Singh be quashed; and respondents be directed to grant promotion to Jagbir Singh, along with all consequential benefits of promotion, such as arrears of salary, allowances, pay benefits, pensionary benefits, etc, along with interest.

14. *Per contra,* ld. State counsel has vehemently refuted the submissions advanced on behalf of the petitioners and submitted that petitioner had first made his representation only in the year 2017, which came to be decided vide

NEELAM KUMARI
2026.08.21 11:03
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order dated 04.09.2019 and notional promotion orders from due date were accordingly issued. Ld. State counsel contends that as such there is no delay on the part of the respondents. Moreover, claim of the petitioner is hit by principle of***"No work, No pay"***. Accordingly, prays for dismissal of the writ petition.

15. No other argument is made on behalf of learned counsel for the parties. I have heard Id. counsel and perused the case file and record in detail. I find no merit in the submissions advanced on behalf of the petitioners.

16. It is the case of the petitioner that even though the Persons with Disabilities Act had come into force in the year 1995, as per which there was 3% reservation for disabled persons in recruitment, promotion, orders of Jagbir Singh have been issued 24/27 years thereafter only in the years 2020 and 2023. It is accordingly contented that as delay had been caused by the respondent, only national promotion could not have been granted; and petitioners are also entitled to all consequential benefits of promotion from due date.

17. However, there is no merit to the said contention. Admittedly, the provisions of the PWD Act 1995 were interpreted by a Division Bench of this Court to include reservation even in promotion only vide judgment dated 18.03.2010 (Annexure P-3) passed in CWP No. 12741 of 2009. Operative extract of which reads as follows:-

> 15. *"Keeping in view the findings in this judgment, the writ petition is allowed. The letter dated 23.12.2002 issued by the Under Secretary General Administration, for Chief Secretary to Government of Haryana is accordingly quashed and set aside. We also direct the respondents to keep 3% posts reserved for promotion for the disabled by giving them promotions as per directions and guidelines issued by*

NEELAM KUMARI
2026.08.21 10:53
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the Ministry of Personnel dated 20.11.1989 (Annexure P-5) not later than six months from today. The petitioner shall be entitled to costs quantified at Rs.20,000/- to be paid not later than four weeks from today."

18. Thus, reservation in promotion was contemplated for the first time by the order dated 18.03.2010. Yet, admittedly, vide the impugned orders, Jagbir Singh has been granted promotion from back date as Block Agricultural Officer w.e.f. 01.01.1996; as Sub-Divisional Agricultural Officer w.e.f. 11.06.1996; and as Deputy Director, Agriculture w.e.f. 11.06.2001.Needless to say, not having worked on the post, the question of grant of actual benefits does not arise.

19. Pursuant to judgment dated 18.03.2010, the respondent-Govt. had issued Instructions dated 17/19.04.2017 (Annexure P-4), making provision for 3% reservation for disabled employees with effect from the date the PWD Act came into force. It is only in pursuance to be aforesaid Instructions that Jagbir Singh had submitted representations dated 8.5.2017,2.8.2017, and 19.9.2017 (Annexures P-7-9).Prior thereto, no such claim of Jagbir Singh ever existed. In these circumstances, the question of grant of actual benefits does not arise.

20. At the risk of repetition, it is reiterated that it is only on the basis of and in pursuance to the judgment of this Court dated 18.03.2010 (Annexure P-3) that the provisions of the PWD Act, 1995 came to be interpreted vide Instructions dated 17/19.04.2017 (Annexure P-4), thereby making provision for reservation for disabled persons even in promotion. It is only thereafter that the deceased Jagbir Singh, for the first time, moved a representation dated 08.05.2017. In these particular circumstances, the claim of the petitioner that Jagbir Singh was entitled to actual benefits, and not just notional promotion, is entirely misconceived; as it

NEELAM KUMARI
2026.08.21 10:53
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was only on the basis of, and in pursuance of, the judgment dated 18.03.2010 passed by this Court, whereby the provisions of the PWD Act, 1995 came to be interpreted, that the matter was further clarified vide Instructions dated 17/19.04.2017 (Annexure P-4), making provision for reservation in promotion for persons with disabilities even in promotion. Prior thereto no claim of the petitioner/Jagbir Singh could even exist. In these circumstances, no delay can be attributed to the respondents.

21. It is also to be seen that admittedly Jagbir Singh had never represented or made any demand for promotion in terms of the PWD Act, which had been promulgated in the year 1995 itself. It was only in 2017, upon issuance of the Instructions dated 17/19.04.2017 (Annexure P-4), that Jagbir Singh had represented for the first time seeking reservation in promotion. In these circumstances, petitioner can derive no benefit from the relied-upon judgments in ***National Federation of the Blind*** (supra), ***C. Muddaiah*** (supra) and ***Harvinder Kaur*** (supra), the same being distinguishable on facts and law.

22. Furthermore, contention of the petitioner that ld. State counsel had given an undertaking before the Contempt Court as noted in order dated 11.09.2019 (Annexure P-14) that petitioner had been promoted is based on a misreading of the said order. Relevant extract of which reads as follow:-

> *"Learned counsel for the respondents has produced copy of order dated 4.9.2019 passed by Director General, Agriculture and Farmers Welfare Department, Haryana, the same is taken on record. Copy thereof has been handed over to learned counsel for the petitioner. As per the said order, the claim of the petitioner in*

NEELAM KUMARI
2026.08.21 10:53
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principle has been accepted and it has been stated that promotion order will be issued later on.

Learned counsel for the respondents, on instructions from Mohinder Pratap Singh, Assistant Director, Agriculture and Farmers Welfare Department, Haryana states that the matter has been sent for doing the needful and promotion order would be issued after the roster points are fixed by the Government. It has further been stated that on fixation of roster points, promotion order would be issued within three months from today.

Learned counsel for the petitioner states that in case the statement made today in court is adhered to, no cause of action survives for pursuing the present contempt petition.

In view of the above, the contempt petition is disposed of as infructuous."

23. Moreover, the above said Contempt Petition was disposed of with the consent of the petitioner. It is also to be noted that as per the Instructions dated 27.11.2006 (Annexure R-2) issued by the respondent-State, it is stipulated as follows:-

"I am directed to invite your attention on the subject cited above and to say that some General Category employees have been demanding that their pay may be fixed at par with juniors of reserve category employees as they have regained their seniority over them as per Hon'ble Supreme Court's order in Ajut Singh Tanjua & others Vs. State of Punjab & Others J.T. 1999 (7) S.C. 153. The aforesaid matter has been examined and it is observed that the Hon'ble Supreme Court in State of Haryana and Others Vs. O.P.Gupta 1996 (2) RSJ 194 have held that in case of national promotion allowed from the deemed dated the concerned officials are not entitled for payment of arrears of salary as they had not worked during the period. Accordingly, payment should be made from the actual date of promotion and notional pay fixation made for the intervening period viz. deemed

NEELAM KUMARI
2026.08.21 10:53
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date of promotion to actual date of promotion. In the light of judgment the Government have thus decided that no arrears of salary is payable to the employee for the period between the deemed date of promotion and the actual date of promotion"

24. The petitioner has not challenged the aforesaid Instructions as per which in case of notional promotion allowed from deemed dated, the said promotees will not be entitled for payment of arrears of salary as they have not worked during the said period.

25. Even otherwise, ***"No work, No pay"***is a well-established principle of law. The Hon'ble Supreme Court in ***Union of India v. B.M. Jha, (SC): Law Finder Doc Id # 489371 in Civil Appeal No.5128 of 2001,*** has held as follows:-

"Constitution of India, Article 16- Promotion-Retrospectively- Principle of no pay no work Applicable - Arrears of salary cannot be granted."

XXXXX

5. We have heard learned counsel for the parties. It was argued by learned counsel for the respondent that when a retrospective promotion is given to an incumbent normally he is entitled to all benefits flowing therefrom. However, this Court in the case of ***State of Haryana and others v. D. P. Gupta and others, (1996) 7 SCC 533*** *and followed in the case of* ***A. K. Soumini v. State Bank of Travancore, 2003 (8) JT (SC) 35*** *has taken the view that even in case of a notional promotion from retrospective date, it cannot entitle the employee to arrears of salary as the incumbent has not worked in the promotional post. These decisions relied on the principle of no work no pay. The learned Division Bench in the impugned judgment has placed reliance on the case of* ***State of Andhra Pradesh v. K. V. L. Narasimha Rao and Ors., 1999 (3) JT (SC) 205****. In our view, the High Court did not examine that case in detail. In fact, in the said judgment the view taken by the*

NEELAM KUMARI
2026.08.21 10:53
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High Court of grant of salary was set aside by this Court. Therefore, we are of the view that in the light of the consistent view taken by this Court in the abovementioned cases, arrears of salary cannot be granted to the respondent in view of the principle of no work no pay in case of retrospective promotion. Consequently, we allow this appeal and set aside the impugned order of the High Court dated 17-5-2000 passed by the Division Bench of the High Court as also the order dated 11-1-2000 passed by the Central Administrative Tribunal, Principal Bench."

26. In view of the above factual and legal position, the present writ petition stands ***dismissed***.

27. Pending application(s), if any, also stands disposed of.

(NIDHI GUPTA)
JUDGE

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Whether speaking /reasoned **Yes / No**
Whether Reportable **Yes / No**

NEELAM KUMARI
2026.08.21 10:53
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